STANDARD OPERATING PROCEDURE			G-6230
SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA GREG LONDON SHERIFF	DATE ISSUED 12/04/06	DATE REVISED **06/15/21**	DATE REVIEWED 02/02/25
	APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL	RESOURCES		
SUBJECT PEPPERBALL	CROSS REFERENCE G-6100 USE OF FORCE G-6110 USE OF FORCE REPORTING REQUIREMENTS		

I. Purpose:

The purpose of this policy is to establish the guidelines for issuing and deploying the PepperBall system.

II. Policy:

The PepperBall system is a less than lethal intermediate weapon that may be used in a variety of law enforcement situations where there is need to safely control non-compliant individuals. PepperBall systems utilize high pressure compressed air to deliver the chemical agent Pelargonic Acid and Vanillyamine (PAVA) from a distance. Deputies of the Sarpy County Sheriff's Office shall use the PepperBall system only in accordance with established use of force policies and procedures (see G-6100 Use of Force). Only those PepperBall systems approved by the Sheriff shall be utilized. Only PepperBall systems approved and maintained by the Sheriff's Office shall be used.

III. Procedures:

A. Training: Only trained and certified deputies shall carry or utilize a PepperBall system.

1. A certified instructor recognized by the manufacturer shall conduct training.
2. Deputies shall recertify every two (2) years.
3. The Training Sergeant shall maintain a list of all deputies currently certified in the use of the PepperBall system.

B. Storage and Maintenance:

1. SWAT Team PepperBall systems shall be stored in the SWAT Team van or the SWAT Team storge room at all times when not in use.

2. Rapid Deployment Force (RDF) PepperBall systems shall be stored in the RDF storage room at all times when not in use.

3. Court Services Unit (CSU) PepperBall systems shall be stored in the CSU armory in the Sarpy County Courthouse at all times when not in use.

4. While in transport, the PepperBall system shall be stored in its case in the interior of a Sheriff's Office vehicle.

5. Supervisors who authorize the use of a PepperBall system during an incident are responsible for notifying a PepperBall instructor of its use and any repairs or re-stocking of supplies that may be required.

6. Maintenance of PepperBall systems shall be completed by a certified PepperBall instructor.

7. A maintenance log shall be kept for each PepperBall system by a certified PepperBall instructor. Maintenance and inspections shall be conducted quarterly.

8. Refills of compressed air canisters shall be completed by a certified PepperBall instructor.

9. The assigned certified PepperBall instructor shall ensure that all compressed air canisters are hydrostatically inspected every five (5) years and shall maintain all records.

C. **Deployment:** The PepperBall system shall be deployed in accordance with all Sheriff's Office training standards, policies and procedures. PepperBall systems shall only be deployed when justified according to the use of force policy (see G-6100 Use of Force).

1. When tactically feasible, verbal commands shall be given prior to, during and after the deployment of a PepperBall system.

2. The PepperBall system may be used to de-escalate potentially dangerous situations where lesser force options would likely be ineffective and where deadly force may not be appropriate. These situations may include, but are not limited to:

a) Barricade/hostage incidents.
b) Suicidal persons.
c) Violent or actively aggressive subjects that may cause injury.
d) Cell extractions.
e) Crowd control/civil disturbance.
f) Animal control.

3. Permission to deploy the PepperBall system must be obtained from a supervisor. It is not necessary for the supervisor to be on scene to grant permission, but he or she shall respond as soon as possible.

4. Prior to deploying the PepperBall system, the deputy shall:

- **a)** Consider the safety of innocent by-standers, other deputies, and the subject.
- **b)** Assign a deadly force cover deputy.
- **c)** Prepare an arrest plan, when possible, as the effects of the PepperBall system may only be temporary.
- **d)** When tactically feasible, announce to other deputies on scene that PepperBall system projectiles are about to be deployed.
- **e)** Give loud verbal commands to the subject to obey the deputy's directions.

5. The PepperBall system may be deployed from zero (0) to sixty (60) feet. The primary target areas are:

- **a)** Front of the body, excluding the head, neck and groin.
- **b)** Back of the body, excluding the head, neck and spine.

6. The PepperBall system may be deployed to disperse a crowd or saturate an area up to a distance of one hundred and fifty (150) feet.

D. Post Deployment:

1. Any deputy deploying a PepperBall system (including accidental discharges) shall immediately notify his or her supervisor. The supervisor shall respond to the scene.

2. The supervisor shall notify the on-duty watch commander or ADC.

3. The on-scene supervisor shall photograph the subject and the PepperBall impact areas as well as any secondary injuries resulting from the use of the PepperBall system.

4. As with the application of an aerosol subject restraint, any person struck with PepperBall (PAVA) rounds shall be administered any necessary first aid, after being secured.

- **a)** Decontamination shall take place as soon as possible by use of cool water, a wet cloth, or cool air.
- **b)** Deputies shall advise the subject that medical attention is available if desired.
- **c)** The subject shall be transported to a medical facility if:

(1) The subject requests medical attention.
(2) The subject was struck by a PepperBall round in the head, neck, spine, or groin.
(3) The subject sustains an injury from a fall after impact from a PepperBall round.
(4) The subject appears to be having difficulty breathing.

5. If the subject was struck by a PepperBall round in the head, neck, spine or groin area, or a secondary injury requires hospitalization, the on-scene supervisor shall request the on-call investigator respond.

6. This policy recognizes that during large crowd control/civil disturbances, it may not be possible to apprehend or treat all the subjects struck or affected by PepperBall rounds.

E. **Reporting:** With the exception of training, deputies shall document all uses of the PepperBall system (including accidental discharges) in accordance with Sheriff's Office use of force reporting requirements (see G-6110 Use of Force Reporting Requirements).

1. On all operational deployments, the Use of Force Report form shall include:

a) A brief description of the incident.
b) The number of PepperBall rounds fired at the subject and where those rounds impacted the subject's body, if known.
c) The distance the deputy was from the subject.
d) Decontamination and medical treatment, if any, provided to the subject.
e) A description of the subject's actions after being struck with the PepperBall system.
f) A description of any injuries sustained by the subject including secondary injuries that may have occurred.

2. If the PepperBall system is deployed on an animal, the deputy shall complete an information report containing all information required for a Use of Force Report form. All other evidence (e.g. photographs) shall be collected and submitted.

3. Deputies accidentally discharging a PepperBall system shall complete an information report containing all relevant information required for a Use of Force Report form.